

HEADNOTE

“Where two patents are the subject of the proceedings and the claim or application is successful in respect of only one patent, it is generally appropriate to apportion the costs in proportion to the values of the two patents. However, it may also be regarded as appropriate to order the unsuccessful party to bear the costs attributable to the respective patent.”

COURT

Court of Appeal Luxembourg

PATENT

EP 3 689 198

KEYWORDS

Legal costs

PROCEEDINGS

Application for provisional measures

COOKING DEVICE AND
COMPONENTS THEREOF

successful only in part (Art. 69(2) UPCA)

SUMMARY

The Court of Appeal in Luxembourg ruled on an application for provisional measures. The patent at issue relates to a cooking device and components thereof. According to the headnotes of the decision, where two patents are subject to proceedings and the claimant succeeds with only one patent, the court may apportion costs proportionally to the patent values or alternatively order the unsuccessful party to bear the costs attributable to each patent individually.